



CHAPTER x

An Act to make provision with respect to the rates and charges leviable by the Milford Docks Company to confer further powers upon the Company to consolidate with amendments certain of the statutory powers of the Company and for other purposes.

[6th May 1953.]

WHEREAS the Milford Docks Company (hereinafter referred to as "the Company") were incorporated by the Milford Docks Act 1874 and have constructed docks and works at Milford in the county of Pembroke (hereinafter referred to as "the Milford Docks"):

And whereas the Company were authorised by the Milford Docks Acts 1874 to 1935 to demand and take rates rents and charges on (inter alia) vessels resorting to the Milford Docks and on goods shipped and unshipped thereat and in respect of certain services provided by them:

And whereas the Minister of Transport in exercise of the powers conferred upon him by Regulation 56 of the Defence (General) Regulations 1939 as having effect by virtue of the Supplies and Services (Transitional Powers) Act 1945 (as extended by the Supplies and Services (Extended Purposes) Act 1947) authorised the Company by the Milford Docks (Increase of Charges) Order 1950 to increase by an amount not exceeding seventy-five per centum all or any of the rates rents and charges specified in the schedule thereto:

And whereas it is anticipated that the said increased rates rents and charges and the right of the Company to impose the same will shortly cease to remain in operation and to be exercisable:

And whereas on the cesser of the powers conferred by the said Order of 1950 the resources of the Company will be insufficient to meet the expenditure necessarily incurred by them in carrying on efficiently the undertaking of the Company and it is necessary that the said undertaking should continue to be so carried on and it is expedient that the said increased rates rents and charges and the right of the Company to impose the same should continue in operation and to be exercisable:

And whereas it is expedient to redefine the provisions which regulate the capital and borrowing powers of the Company and the administration of their affairs:

And whereas it is expedient to consolidate with amendments certain of the statutory powers of the Company and to confer upon the Company such other powers in relation to their undertaking as are in this Act contained:

And whereas it is expedient that the other powers contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I

PRELIMINARY

Short and
collective
titles.

1.—(1) This Act may be cited as the Milford Docks Act 1953.

(2) The Milford Docks Acts 1874 to 1935 and this Act may be cited together as the Milford Docks Acts 1874 to 1953.

Division of Act
into Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Docks.

Part III.—Rates.

Part IV.—Finance.

Part V.—Administration.

Part VI.—General.

Incorporation
of Acts.

3.—(1) The following enactments so far as the same are applicable to the purposes and are not inconsistent with the provisions of the Milford Docks Acts 1874 to 1953 are hereby incorporated with this Act (namely):—

(a) The Companies Clauses Consolidation Act 1845 (except sections 38 to 60 thereof);

- (b) The Companies Clauses Act 1863 (except sections 13 to 15 and Part IV thereof):

PART I
—cont.

Provided that section 22 of the said Act of 1863 shall be read and have effect as if—

(i) after the words “may from time to time raise” there were inserted the words “the amount so authorised by the special Act”; and

(ii) the words “all or any part of the money which for the time being they have raised or are authorised to raise on mortgage or bond” and the words “instead of and to the same amount as the whole or any part of the money which may for the time being be owing by the Company on mortgage or bond or which they may from time to time have power to raise on mortgage or bond” were omitted therefrom.

- (c) The Harbours Clauses Act 1847 (except sections 12 and 13 16 to 19 25 and 26 and 84 to 87 thereof):

Provided that in the application of the said Act of 1847 to this Act—

(i) the said Act of 1847 shall be read and have effect as if the word “vessel” as defined in this Act were substituted for the meaning assigned to that word by section 3 of the said Act of 1847;

(ii) nothing in the said Act of 1847 shall require or authorise the dock master to require the dismantling of a seaplane or any part thereof or the making of any alteration whatever of the structure or equipment of a seaplane.

(2) In the construction of the enactments so incorporated with this Act the expression “special Act” shall be read as a reference to this Act and the expression “company” shall mean the Company.

4.—(1) In this Act the following words and expressions have the several meanings hereby assigned to them respectively unless there be something in the subject or context repugnant to such construction (that is to say):—

“the Act of 1874” means the Milford Docks Act 1874;

“the Company” means the Milford Docks Company;

“the directors” means the directors for the time being of the Company;

“the dock master” includes every officer of the Company having the powers of a dock master under the Harbours Clauses Act 1847;

PART I
—cont.

“ the docks ” means the Milford Docks as constructed by the Company and the land buildings works plant property and conveniences connected therewith as for the time being existing ;

“ enactment ” means any provision of a public general Act of a local private or personal Act of a Provisional Order confirmed by an Act or of any regulation or order made under an Act ;

“ the existing capital ” means the debenture stock of the Company amounting to four hundred and fifty thousand pounds bearing interest at the rate of three and a half per centum per annum and the ordinary stock of the Company amounting to five hundred and fifty-one thousand nine hundred and four pounds created and issued at the date of the passing of this Act ;

“ the Harbours Clauses Act 1847 ” means the Harbours Docks and Piers Clauses Act 1847 ;

“ land ” includes any interest in land and any easement or right in to or over land ;

“ the limits of the docks ” means the limits defined in section 5 (As to limits of the docks) of this Act ;

“ the Minister ” means the Minister of Transport ;

“ rates ” includes rents charges and sums of money ;

“ share ” means share in the share capital of the Company and includes stock except where a distinction between stock and shares is expressed or implied and “ share capital ” and “ shareholder ” shall be construed accordingly ;

“ seaplane ” includes a flying boat and any other aircraft designed to manœuvre on the water ;

“ the undertaking ” means the undertaking of the Company as for the time being existing including the docks ;

“ vessel ” includes—

(a) for the purposes of section 14 (Removal of sunk stranded or abandoned vessels) and section 15 (As to vessels in which the Crown have an interest) of this Act a seaplane and other aircraft ; and

(b) in all other cases a seaplane on the surface of the water.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

PART II

DOCKS

5.—(1) The limits of the docks shall include the works of the Company authorised by the Milford Docks Acts 1874 to 1953 and that portion of Milford Haven and the shore thereof below high-water mark which is comprised within a line drawn due south from the most southerly projection of the shore at high water of mean spring tides at Hakin Point to the five-fathom line and thence along that line eastward to a point due south of the most southerly projection of the shore at such high water on the west side of the entrance to Castle Pill and thence along the line of shore at such high water including the shores of Hubberston and Priory Pills Havens Head and Hakin to the first-mentioned projection.

(2) The words “ the limits of the docks (as defined in section 5 (As to limits of the docks) of the Milford Docks Act 1953) ” shall be substituted for the words “ the limits of this Act ” in the Act of 1874 in every place where those words occur.

6.—(1) Notwithstanding the repeals effected by section 63 (Repeal) of this Act the lands acquired by the Company under powers conferred by the Milford Docks Acts 1874 to 1935 and the works constructed by the Company thereunder shall continue to be vested in the Company.

(2) The Company may within the limits of the docks maintain repair renew alter enlarge improve and extend the said works or any of them.

7. Nothing in this Act shall authorise the execution of any works on over or under tidal lands below high-water mark of ordinary spring tides except in accordance with plans and sections approved by the Minister and subject to such restrictions and regulations as the Minister may prescribe before such works are begun.

8.—(1) The Company shall at the outer extremity of such works constructed by them for the purposes of the undertaking as are situated below high-water mark of ordinary spring tides exhibit and keep burning every night from sunset to sunrise such lights (if any) as the Corporation of Trinity House Deptford Strond shall from time to time direct.

(2) If the Company fail to comply in any respect with the provisions of this section they shall be liable to a penalty not exceeding twenty pounds and in the case of a continuing offence to an additional penalty not exceeding two pounds for each day on which the offence is continued after conviction thereof.

PART II
—cont.

Provision
against danger
to navigation.

9.—(1) In case of injury to or destruction or decay of the works constructed by the Company for the purposes of the undertaking or any part of those works so far as the same are constructed on under or over any tidal waters or tidal lands below high-water mark of ordinary spring tides the Company shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Corporation of Trinity House Deptford Strond and shall apply to the said corporation for directions as to the means to be taken.

(2) If the Company fail to comply in any respect with the provisions of this section they shall be liable to a penalty not exceeding ten pounds and in the case of a continuing offence to an additional penalty not exceeding one pound for every day during which they omit after conviction thereof so to apply or refuse or neglect to obey any direction given in reference to the means to be taken.

Power of
Company to
acquire land
by agreement.

10.—(1) In addition to their powers under section 20 of the Harbours Clauses Act 1847 the Company shall have power under this section to acquire land by agreement whether by way of purchase lease or exchange for any of the purposes of the undertaking.

(2) Without prejudice to the generality of the foregoing subsection the Company may acquire land thereunder for the purpose of erecting houses and other buildings thereon for the use of persons employed by them for the purposes of the undertaking.

(3) The Lands Clauses Acts except the provisions relating to the acquisition of land otherwise than by agreement and the provisions relating to access to the special Act and except sections 99 to 107 and sections 127 to 132 of the Lands Clauses Consolidation Act 1845 are hereby incorporated with the foregoing provisions of this section and in construing those Acts those provisions shall be deemed to be the special Act and the word "land" shall have the meaning assigned to it in this Act.

Power to lease
graving docks.

11. The Company may for such term or terms and on such conditions as they may deem expedient lease to any company body or person any graving dock of the Company and any portion of the lands and quays adjacent thereto and any buildings engineering shops or other conveniences in connection therewith and may by any such lease confer on the lessees all or any of the powers of the Company in connection with such graving dock lands or quays including the power to take and levy tolls and rates in respect of the user thereof and such lease shall duly take effect as a transfer of the powers exercisable by the Company so purporting to be transferred thereby.

12. The Company may notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 or any enactment from time to time relating to the Company retain hold or use and from time to time for such considerations at such rents and upon such terms (pecuniary or otherwise) and conditions as they may from time to time think fit sell exchange or lease any lands from time to time belonging to them and which in the opinion of the Company may not be for the time being required for the purposes of the undertaking and (for such term or period as they may think proper) lease or grant the use or occupation of or easements or rights over or affecting any warehouses buildings wharves yards cranes machines or other works or conveniences for the time being belonging to or provided by them.

PART II
—cont.

Power to sell
and lease lands
etc.

13. The Company on the one hand and the Milford Haven Dock and Railway Company on the other hand may enter into and carry into effect agreements with respect to the exchange of any lands belonging to them respectively and the rearrangement alteration and deviation of any lines of rails sidings or other works of the Company or the said railway company.

Agreements
with railway
company.

14.—(1) Whenever any vessel is sunk stranded or abandoned in any part of the docks or in or near any approach thereto the Company may if they think fit cause the vessel or any part thereof to be raised removed blown up or destroyed.

Removal of
sunk stranded
or abandoned
vessels.

(2) The Company may cause any such vessel and the furniture and tackle and apparel thereof or any part thereof respectively which shall be raised or salvaged and also all or any part of the cargo goods chattels and effects which may be raised or salvaged from any such vessel to be sold in such manner as they may think fit and out of the proceeds of sale may reimburse themselves for the expenses incurred by them under this section and also for any expenses incurred by them in marking buoying watching lighting or otherwise controlling the vessel and shall hold the surplus (if any) of the proceeds of the sale in trust for the persons entitled thereto:

Provided that the Company shall before selling any such cargo goods chattels or effects as aforesaid pay all duties and purchase tax payable to Her Majesty in respect of the cargo goods chattels or effects to be sold and they may retain the amount of the duties and purchase tax so paid out of the proceeds arising from the sale of such cargo goods chattels or effects.

(3) If the proceeds of the sale are insufficient to reimburse the Company for the aforesaid expenses duties and purchase tax the Company may recover the deficiency or in case of an appeal

PART II
—cont.

under subsection (4) of this section such sum as is awarded by the arbitrator to be payable in respect of the deficiency from the owner of any such vessel either summarily as a civil debt where the amount recoverable does not exceed twenty pounds or as a debt in any court of competent jurisdiction.

(4) If on demand being made under this section for payment of any deficiency the owner of the vessel is dissatisfied with the amount demanded he may within fourteen days after the receipt of the demand appeal to the Minister who shall appoint an arbitrator to determine and award whether any and if so what sum is payable in respect of the deficiency.

(5) The Company shall (except in any case which in their opinion is a case of emergency) before raising removing blowing up or destroying any vessel under the provisions of this section give to the owner of the vessel twenty-four hours' notice of their intention so to do and if within twelve hours after the expiration of such notice the owner gives to the Company notice in writing of his intention himself to raise and remove the vessel he shall be at liberty to do so in lieu of the Company:

Provided that if the owner gives any such notice as last aforesaid—

(a) he shall in raising or removing the vessel comply with any directions which may from time to time be given to him by or on behalf of the Company for the purpose of preventing interference with navigation; and

(b) he shall forthwith after giving such notice commence and shall with all diligent dispatch proceed with and complete the raising or removal of the vessel;

and if such raising or removal be not completed within seven days after the giving of such notice by the owner such notice shall be null and void and the Company shall be at liberty to cause the vessel to be raised removed blown up or destroyed in accordance with the provisions of this section as if the owner had not given such notice.

(6) The Company shall (except in any case which in their opinion is a case of emergency) before selling any vessel or any part thereof or any part of the cargo goods chattels and effects thereof under the provisions of this section give to the owner seven days' notice of their intention so to do.

(7) Any notice given by the Company pursuant to subsection (5) or subsection (6) of this section shall be given by delivering the same to the owner or by posting a prepaid letter addressed to the owner at the place in the United Kingdom where he carries on business or at his last known place of abode

in the United Kingdom or if the owner or his place of business or abode is not known to the Company then by exhibiting such notice at the principal office of the Company for twenty-four hours in the case of a notice given under the said subsection (5) or for seven days in the case of a notice given under the said subsection (6).

PART II
—cont.

(8) (a) In this and the following section the expression “owner” in relation to any vessel sunk stranded or abandoned as aforesaid means the owner of that vessel at the time of the sinking stranding or abandonment thereof.

(b) For the purposes of this subsection where a ship is registered under the Merchant Shipping Act 1894 or under any corresponding provision of the law of any country other than the United Kingdom the registered owner of the ship at the time of the sinking stranding or abandonment thereof shall be deemed to be the owner thereof at that time.

(9) The Company shall (except in any case which in their opinion is a case of emergency) before raising removing blowing up or destroying any vessel under the provisions of this section give to the Postmaster-General notice in writing of their intention so to do.

(10) The powers conferred on the Company by this section shall be in addition to and not in derogation of any other powers exercisable by them for or with respect to the removal of wrecks.

(11) Except for the purpose of removing any obstruction to the docks nothing in this section shall entitle the Company to remove any wreck (as defined in section 510 of the Merchant Shipping Act 1894) to the prejudice or in derogation of the rights with respect to such wreck of the receiver of wreck under the provisions of Part IX of the said Act of 1894 and if the Company shall for any such purpose as aforesaid remove any such wreck they shall (without prejudice to the rights of sale conferred upon them by the foregoing provisions of this section) hold and dispose of the same or any such surplus of the proceeds of sale thereof as is referred to in subsection (2) of this section in accordance with such directions (if any) as may be given to them by the said receiver.

(12) For the removal of doubt it is expressly provided that nothing in this section shall apply to any vessel belonging to Her Majesty or held by any person on behalf of or for the benefit of the Crown nor shall any of the powers conferred by this section be exercised if by such exercise the Crown would become liable directly or indirectly otherwise than as an insurer or reinsurer under a contract of insurance or reinsurance for any expenses

PART II
—cont.

incurred by the Company except where such consent is given as is provided for in section 15 (As to vessels in which the Crown have an interest) of this Act and the vessel was not such a vessel as aforesaid at the time of its sinking stranding or abandonment.

As to vessels in which the Crown have an interest.

15.—(1) The Company shall before taking possession of raising removing blowing up or destroying any vessel sunk stranded or abandoned under the powers conferred upon them by this Act or by any other enactment give to the Admiralty and to the Minister notice in writing of their intention so to do and if within fourteen days after the receipt of such notice the Admiralty or the Minister gives to the Company—

- (a) a certificate that the vessel was sunk stranded or abandoned by a person acting on behalf of Her Majesty or otherwise by an officer or servant of the Crown acting in the course of his duty as such and that it is not in the national interest that the Company should take possession of the vessel or that the vessel should be raised removed or blown up or destroyed ; or
- (b) a notice that the exercise by the Company of the rights of recovery conferred by subsection (2) of section 14 (Removal of sunk stranded or abandoned vessels) of this Act would render the Crown liable directly or indirectly otherwise than as an insurer or reinsurer under a contract of insurance or reinsurance for all or a substantial proportion of the expense incurred by the Company ;

the Company shall not without the consent in writing of the authority by whom the certificate was issued or the notice given take possession of raise remove blow up or destroy such vessel :

Provided that in any case which in their opinion is a case of emergency the Company may take possession of raise remove blow up or destroy any vessel without giving notice of their intention so to do to the Admiralty or to the Minister and in that event the Company shall not be entitled to recover from any person the expenses incurred by them in so doing if the effect of such recovery would be to render the Crown so liable.

(2) If the Company shall mark light watch buoy control or give warning to shipping of the presence of any vessel in respect of which the Admiralty or the Minister have refused their consent under subsection (1) of this section the Company shall not be entitled to recover the expenses of so doing from the owner of the vessel.

16. Section 52 of the Harbours Clauses Act 1847 in its application to the Company and the dock master—

PART II
—cont.

(a) shall extend to empower the dock master to give directions prohibiting the mooring of vessels in any particular part or parts of the docks ; Directions of dock master.

(b) shall not be construed to require the dock master in emergency to give particular directions in the case of every vessel in respect of which it is desired to exercise any of the powers of that section but in pursuance of that section for all or any of the purposes thereof the dock master shall be entitled in emergency to give general directions applicable to all vessels or to particular classes of vessels.

17. Section 53 of the Harbours Clauses Act 1847 in its application to the Company and the dock master shall not be construed to require the dock master to serve a notice in writing of his directions upon the master of a vessel but such directions may be given verbally or otherwise communicated to such master but a notice which is not in writing shall not be deemed to be sufficient unless in the opinion of the court before whom any case may be heard it was not reasonably practicable to serve a written notice on the master of the vessel. Orders of dock master need not be in writing.

18.—(1) The powers of the Company to make byelaws under section 51 (Power to make additional byelaws) of the Act of 1874 are extended so as to enable them to make byelaws prohibiting the use navigation or mooring within the limits of the docks of such class or classes of vessels to which this section applies as may be prescribed in such byelaws as being vessels unsuitable for use within the said limits. Extension of section 51 of Act of 1874.

(2) This section applies to any vessel (not being a vessel which is solely used as a tug or for the carriage of goods or for the catching of fish).

19. The provisions of subsections (2) to (7) of section 250 and sections 251 and 252 of the Local Government Act 1933 shall apply to all byelaws to be made by the Company under the provisions of the Milford Docks Acts 1874 to 1953 (except byelaws which relate solely to the Company their officers or servants) as if the Company were a local authority and for the purposes of such application the Minister shall be the confirming authority. Byelaws.

20. Where any waste fish or fish offal is left unclaimed by the person entitled thereto on any part of the Company's premises on any day after three o'clock in the afternoon or after the end Disposal of offal or waste fish.

PART II
—cont.

of a period of three hours after being unshipped whichever shall be later the Company may at their option either—

- (a) appropriate such waste fish or fish offal to their own use ; or
- (b) if such waste fish or fish offal be unsaleable remove and dispose of the same and recover from the person entitled to the same the expenses of removal summarily as a civil debt where the amount recoverable does not exceed twenty pounds or as a debt in any court of competent jurisdiction.

Amendment of
enactments.

21.—(1) Section 49 (Company may contract for supply of water and gas) of the Act of 1874 shall be read and have effect as if for the words “a supply of gas” there were substituted the words “supplies of gas and electricity”.

(2) Subsection (2) of section 2 (Interpretation) of the Milford Docks Act 1919 shall be read and have effect as if—

- (a) the definition of “vessel” were omitted therefrom ;
- (b) in the definition of the expressions “shipped” and “unshipped” for the words “hydroplane airship or similar craft whether heavier or lighter than air” there were substituted the words “(as defined in the Milford Docks Act 1953)”.

(3) The Second Schedule to the Milford Docks Act 1919 shall be read and have effect as if under the heading “Eighth Class” the words “seaplanes hydroplanes and similar craft” were omitted therefrom.

PART III

RATES

Increase of
rates.

22.—(1) The rates which the Company were immediately before the making of the Milford Docks (Increase of Charges) Order 1940 authorised to levy demand receive and recover under or by virtue of section 44 (Rates for the use of wharves cranes &c. and for warehousing goods) of the Act of 1874 and section 3 (Rates on vessels) section 4 (Rates on goods) and section 5 (Charges for graving dock) of the Milford Docks Act 1919 shall be increased by seventy-five per centum of the respective amounts thereof:

Provided that nothing in this subsection shall interfere with or affect any rights of the Company with reference to the amount of any rates leviable or chargeable by them for which no maxima are prescribed by the Milford Docks Acts 1874 to 1935.

(2) The Milford Docks (Increase of Charges) Order 1950 is hereby revoked.

23.—(1) In this section “authorised rates” means the rates which the Company are for the time being authorised to levy demand receive and recover in pursuance of section 22 (Increase of rates) of this Act or any order made under this section. PART III
—cont.
Revision of
rates.

(2) If it is represented by application in writing to the Minister—

- (a) by any chamber of commerce or shipping or any representative body of traders or shipowners; or
- (b) by any person who in the opinion of the Minister has a substantial interest in the trade of the docks and is a proper person to make an application; or
- (c) by the Company;

that under the circumstances then existing the authorised rates should be revised in whole or in part the Minister if he thinks fit may make an order revising all or any of the authorised rates referred to in the application and may fix the date as from which such order shall take effect and thenceforth such order shall remain in force until the same expires or is revoked or modified by a further order of the Minister made in pursuance of this subsection.

(3) An application made to the Minister under subsection (2) of this section shall be accompanied by such information and particulars as the Minister may consider relevant certified in such manner as he may require.

(4) Where upon an application under subsection (2) of this section for an increase or a decrease of the authorised rates an order has been made or the Minister has decided not to make an order no further application for an increase or a decrease (as the case may be) of any of the rates to which the application related shall be made within twelve months from the date of such order or decision as the case may be.

(5) Before making an order under subsection (2) of this section the Minister shall consult with such bodies or persons as aforesaid as appear to him to be appropriate including the Company where they are not the applicants and for the purpose of ascertaining such bodies or persons may require public notice of the application to be given and where an objection to an application is made by the Company or by such body or person as aforesaid and is not withdrawn the Minister unless it appears to him that the objection is of a trivial nature shall cause an inquiry to be held in reference to the application.

(6) Subject to the proviso to this subsection the Minister shall not by an order under subsection (2) of this section make any such revision of the authorised rates as in his opinion would so

PART III
—cont.

far as can be estimated be likely to result in the annual revenue of the Company being insufficient or more than sufficient to enable the Company with efficient management of the undertaking to make adequate provision for paying all proper expenses of and connected with the working management and maintenance of the undertaking including interest on loan capital (regard being had by him to any capital which the Company may reasonably be expected to expend) making good depreciation providing for any contributions which the Company may reasonably and properly carry to any reserve fund contingency fund or sinking fund and meeting all other costs charges and expenses if any properly chargeable to revenue together with a reasonable return upon the paid-up share capital of the Company:

Provided that in any case where the Minister is satisfied that there are special circumstances affecting the undertaking taking into account the financial condition of the undertaking during such period preceding the date on which an application is made under subsection (2) of this section as the Minister considers to be appropriate the Minister may revise the authorised rates in such manner as he thinks just and reasonable with due allowance for such special circumstances notwithstanding that such revision is likely to result in the revenue of the Company being insufficient to enable the Company to make adequate provision for all of the matters referred to in the foregoing provisions of this subsection.

(7) The authorised rates as revised by an order under subsection (2) of this section shall not in any case be less than the Company were authorised to levy demand receive and recover under or by virtue of the Milford Docks Acts 1874 to 1935.

(8) The power of the Minister to make an order under subsection (2) of this section shall be exercisable by statutory instrument.

**Rates on
seaplanes.**

24.—(1) Subject to the provisions of the Civil Aviation Act 1949 the Company may demand and take on and in respect of seaplanes entering or using or leaving the docks such reasonable rates as may from time to time be approved by the Minister.

(2) The rates authorised by this section shall be payable by the owner or other person in charge of the seaplane in respect of which the rate is demanded as the Company may determine.

**Dock master
may prevent
sailing of
vessels.**

25. The dock master may prevent the removal or sailing from within the limits of the docks of any vessel in respect of which or of the goods imported or exported wherein any rates are payable until evidence has been produced to him of the payment of those rates to the collector.

26. In addition to the remedy given by section 44 of the Harbours Clauses Act 1847 and whether the demand required by that section has been made or not the Company may recover any rates which by any enactment from time to time relating to the Company they are authorised to demand and take as a debt in any court of competent jurisdiction.

PART III
—cont.

Recovery of
rates.

PART IV

FINANCE

27.—(1) Notwithstanding the repeals effected by section 63 (Repeal) of this Act the authorised capital of the Company shall continue to be one million one hundred thousand pounds consisting of—

Capital.

- (a) debenture stock to the amount of five hundred thousand pounds bearing interest at three and a half per centum per annum ; and
- (b) ordinary share capital to the amount of six hundred thousand pounds.

(2) The existing capital shall for the purposes of the annual accounts and balance sheets of the Company and of any new share certificate or debenture stock certificate that may be issued by the Company be deemed to have been authorised and issued solely under this Act and not under any of the provisions repealed by the said section 63 of this Act.

28. Notwithstanding the repeals effected by section 63 (Repeal) of this Act the existing capital shall continue to be subject and liable to the same trusts powers provisions declarations agreements charges liens and incumbrances as affected the same immediately before the passing of this Act and every deed or other instrument relating to and every testamentary or other disposition of or affecting the existing capital made before the passing of this Act shall take effect as if this Act had not been passed.

As to existing
capital.

29. Notwithstanding the repeals effected by section 63 (Repeal) of this Act the Company shall continue to be authorised from time to time for the purposes of the undertaking—

As to
unexercised
powers of
raising capital.

- (a) to raise loan capital by the creation and issue of debenture stock of a nominal amount of fifty thousand pounds ; and
- (b) to raise share capital by the creation and issue of ordinary shares of a nominal amount of forty-eight thousand and ninety-six pounds.

PART IV
—cont.

Share capital created to raise unissued capital to be part of general share capital.

30. The share capital created by the Company in exercise of the powers conferred by section 29 (As to unexercised powers of raising capital) of this Act shall form part of the general share capital of the Company and save as may be otherwise expressly provided by the terms and conditions subject to which the shares are issued the holders thereof in proportion to the amount of their holding shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents in all respects as holders of share capital of the Company of the same class or description.

Redeemable debenture stock.

31.—(1) In this section unless the context otherwise requires—
“ issue ” includes reissue ;

“ redeemable stock ” means any debenture stock issued under the powers of this section so as to be redeemable ;

“ redeemed stock ” means any redeemable stock which has been redeemed and is available for issue under the provisions of this section.

(2) Subject to the provisions of this section the directors may from time to time by virtue of this Act and without further or other sanction issue so as to be redeemable any debenture stock created by the Company after the passing of this Act and any redeemed stock :

Provided that no redeemed stock shall be issued except for the purpose of effecting the redemption of redeemable stock under the provisions of this section unless the issue is authorised by a resolution of a general meeting of the Company.

(3) Redeemable stock may be redeemed either by paying off the stock or by issuing to the holder of the stock (subject to his consent) other stock in substitution therefor and for the purpose of raising money to pay off or of providing stock in substitution for any redeemable stock the Company may create new debenture stock or the directors may issue any redeemed stock so as to be redeemable or irredeemable as they may think fit :

Provided that no new debenture stock shall be created nor shall any redeemed stock be issued so as to make the total amount of any particular class of debenture stock exceed the amount of stock of that class which the Company are for the time being authorised to create except during any necessary interval between the creation or (in the case of redeemed stock) the issue of the stock and completion of the redemption of the redeemable stock for the purpose of redeeming which the debenture stock of such particular class is proposed to be so created or issued.

(4) Redeemable stock shall be redeemable at such time and in such manner and subject otherwise to such terms and conditions as the directors may before the issue thereof determine:

PART IV
—cont.

Provided that the terms and conditions of redemption upon which any redeemable stock is issued shall be stated in any offer by the Company of such stock for sale and in the certificate of such stock and no term or condition of redemption which is not so stated shall be binding upon the holder of the stock.

(5) The Company shall not redeem out of revenue any redeemable stock but any discount allowed on the issue or any premium payable on the redemption thereof may be written off out of revenue.

32. Notwithstanding anything in Part III of the Companies Debenture
Clauses Act 1863 the interest of all debenture stock created and stock.
issued by the Company under any previous Act or this Act or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Act or resolutions by which the debenture stock was authorised).

Notice of the effect of this enactment shall be endorsed on all certificates of debenture stock issued after the passing of this Act.

33.—(1) The Company may for the purposes of or in con- Company may
nection with the undertaking borrow or raise moneys on incur
temporary loans by means of overdrafts from bankers or other- temporary
wise. Provided that the aggregate amount outstanding at any loans.
time of the moneys so borrowed or raised shall not exceed fifty thousand pounds.

(2) The power conferred by this section shall be in addition to any power for the time being of the Company to raise moneys by the creation and issue of debenture stock.

34.—(1) All money raised under the Milford Docks Acts 1874 Application
to 1953 including premiums shall be applied only to purposes of money.
to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of share capital under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend.

(2) The Company may apply to any of the purposes of this Act to which capital is properly applicable any money which they have raised or are authorised to raise under the Milford Docks Acts 1874 to 1953.

PART IV
—cont.Power to
invest in other
companies.

35.—(1) In this section the expression “other company” means a company (other than the Company) incorporated by statute or a registered company.

(2) In order to provide or facilitate the provision of funds for—

(a) the establishment carrying on or extension by any other company of the business of owners or users of fishing vessels resorting to the docks or the business of buying selling preparing for market or dealing in fish ;

(b) the establishment carrying on or extension by any other company of warehouses factories or works at or near to the docks ; or

(c) the establishment or carrying on by any other company of an undertaking or business connected with or ancillary to the objects or purposes of the undertaking ;

and to the extent requisite therefor the Company may subscribe for purchase take up and hold or dispose of any shares stock mortgages debentures or debenture stock of such other company and may in respect of any such shares stock mortgages debentures or debenture stock for the time being held by them exercise either by themselves or through some person nominated by the directors for the purpose all or any of the rights exercisable by an individual holder of such shares stock mortgages debentures or debenture stock.

(3) The Company may apply for the purposes of this section any money which they have already raised or are authorised to raise or any of their other funds or revenues except money carried to depreciation account or maintenance renewal or insurance funds in the accounts of the Company.

(4) The accounts of the Company for each year shall contain particulars of any investments made by them under this section and of the income derived from such investments.

PART V

ADMINISTRATION

Notices of
meetings.

36. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 notice of all meetings of the Company whether ordinary or extraordinary may (if the directors so determine) be given by a prepaid letter sent by post to each shareholder instead of by public advertisement:

Provided that—

(a) any such letter shall be directed according to the registered address of each shareholder and posted not later than seven clear days before the date of the meeting ; and

(b) in proving that any such notice has been given it shall be sufficient to prove that the letter containing the notice was properly addressed and posted as a prepaid letter not later than the time prescribed by this section.

PART V
—cont.

37. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 or in any enactment relating to the Company the ordinary general meeting of the Company shall be held in each year in the month of March or at such other times and at such place as the directors may from time to time appoint and it shall not be obligatory on the Company to hold half-yearly meetings or to balance their accounts or to make up a balance sheet half-yearly.

Annual
general
meeting and
yearly
accounts.

38. The quorum for a general meeting of the Company (whether ordinary or extraordinary) shall be proprietors of the Company holding in the aggregate not less than one thousand pounds in nominal value of the share capital of the Company to which voting rights are attached and being present in person in number not less than five.

Quorum for
general
meetings.

39. At all meetings of the Company (whether ordinary or extraordinary) every holder of share capital to which voting rights are attached by the resolution creating the same shall on a show of hands be entitled to one vote and on a poll to one vote for each complete ten pounds (or part thereof in the case of the first ten pounds) of the nominal value of such capital up to one hundred pounds one vote for each complete fifty pounds of the nominal value of such capital exceeding one hundred pounds but not exceeding one thousand pounds and one vote for each complete one hundred pounds of the nominal value of such capital exceeding one thousand pounds.

Voting at
general
meetings.

40. At any meeting of the Company a majority of votes shall only be required to be proved if a poll be demanded at the meeting and if a poll be not demanded then a declaration by the chairman that the resolution has been carried and an entry to that effect in the book of proceedings of the Company shall be sufficient and conclusive evidence of the fact without proof of the number or proportion of votes recorded in favour of or against the resolution.

Proof of
majority of
votes.

41. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 it shall not be obligatory upon the Company—

Register of
shareholders
and
shareholders'
address book.

(a) to keep separately a register of shareholders and a shareholders' address book if in lieu thereof the Company keep one register only containing such particulars as

PART V
—cont.

are required by the said Act to be entered in the register of shareholders and the shareholders' address book respectively ; or

- (b) to authenticate by the affixing of their common seal or otherwise the register of shareholders or any register which the Company may keep in lieu thereof under the powers of this section.

Substitution of card index for shareholders' address book.

42. Notwithstanding anything in section 10 of the Companies Clauses Consolidation Act 1845 the Company may substitute for the shareholders' address book provided under that section or for the portion of any register which the Company may keep under section 41 (Register of shareholders and shareholders' address book) of this Act containing such particulars as are required by the said Act to be entered in the shareholders' address book a card or other index (of a type to be approved by the auditors of the Company) containing the names and addresses of the several shareholders of the Company and the said section 10 in its application to the Company shall be read and have effect accordingly.

Addresses of shareholders etc. abroad.

43.—(1) Any registered holder of shares debenture stock or mortgages of the Company of any class whose address is not in Great Britain shall from time to time name an address within Great Britain which shall for the purposes of the Company be deemed to be the address of the holder and shall be entered in the appropriate register and it shall not be obligatory on the Company to send any notice to any such holder otherwise than to an address so named.

(2) In this section "the appropriate register" means—

(a) in relation to any shares—

(i) the shareholders' address book ; or

(ii) the register which the Company may keep in lieu thereof under section 41 (Register of shareholders and shareholders' address book) of this Act ; or

(iii) the card or other index which the Company may keep in lieu of either the shareholders' address book or the said register under section 42 (Substitution of card index for shareholders' address book) of this Act ;

(b) in relation to any debenture stock the register of debenture stockholders kept by the Company pursuant to section 28 of the Companies Clauses Act 1863 ;

(c) in relation to any mortgages the register of mortgages kept by the Company pursuant to section 45 of the Companies Clauses Consolidation Act 1845.

44.—(1) The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any dividend on any share capital of the Company and they may close the registers of transfers of debenture stock and mortgages of the Company for a period not exceeding fourteen days previous to each date at which the interest thereon shall be payable and the directors may in any such case fix a day for the closing of any register which they are authorised to close under the provisions of this section. Seven clear days' notice at least of the closing of any such register shall be given by advertisement in the newspaper which in the opinion of the directors is most suitable for bringing such closing to the attention of the shareholders.

Closing of
transfer books.

(2) Any transfer of any share capital debenture stock or mortgages made or lodged for registration during the time when the register of transfers of such share capital or security is so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend or the payment of any such interest as the case may be.

45.—(1) The number of directors shall be not less than four Directors. nor more than eight.

(2) The qualification of a director shall be the possession in his own right of share capital of the Company to the nominal amount of not less than one hundred pounds.

(3) Every director who is not qualified at the time of his election as a director shall obtain his qualification within two months after his election. If any director does not within such two months obtain his qualification he shall vacate his office as director and shall be incapable of being re-elected a director until he has obtained his qualification.

(4) The quorum of a meeting of the directors shall be such number (not being less than three) as the directors may from time to time determine and in the absence of any such determination shall be three.

(5) Except in the case of a director retiring by rotation and offering himself or being proposed for re-election no person shall be capable of being elected at a general meeting a director of the Company unless notice in writing that such person intends to offer himself or will be proposed for the office of director shall have been given to the secretary or left at the principal office of the Company ten clear days at least before the day of election.

46. The continuing directors may act notwithstanding any vacancy in their body but if at any time the number of the directors shall be less than four the directors shall not except for

Continuing
directors.

PART V
—cont.

the purpose of filling vacancies and allotting shares to any proposed director or directors act so long as the number is below that minimum.

Additional
directors.

47.—(1) The directors shall have power to appoint one or more persons as an additional director or additional directors who shall retire from office at the next ordinary meeting but shall be eligible for election at that meeting as an additional director or additional directors. Provided that no person shall be appointed an additional director under this section if his appointment would make the number of directors more than eight.

(2) For the purposes of the provisions of the Companies Clauses Consolidation Act 1845 relating to the retirement of directors by rotation the term of office of a person who is appointed an additional director under subsection (1) of this section and is elected as an additional director at the next ordinary meeting after such appointment shall be deemed to have commenced at that ordinary meeting.

Directors not
to be
disqualified
from entering
into contracts.

48. A director shall not be disqualified by his office from being interested in any contract with the Company or with any company of which the Company is a shareholder on his own behalf or as a member of any other company or any corporation or partnership. Provided that if a director or any company corporation or partnership of which he is a member be or become interested in any contract with the Company or with any company of which the Company is a shareholder (whether such interest shall arise before or after his appointment as a director) the nature of his interest or of the interest of such company corporation or partnership in the contract shall be disclosed by him at the meeting of the directors at which the contract is determined on if his or their interest then exists or in any other case at the first meeting of the directors after the acquisition of his or their interest or after his appointment and that no director shall as a director vote in respect of any such contract and if he does so vote his vote shall not be counted but this prohibition shall not apply to any contract by or on behalf of the Company to give to the directors or any of them any security by way of indemnity.

For the purposes of the proviso to this section a general notice given to the directors by one of them to the effect that he is a member of a specified company corporation or partnership and is to be regarded as interested in any contract which may after the date of the notice be made with that company corporation or partnership shall be deemed to be sufficient declaration of interest in relation to any contract so made.

49. The directors may from time to time prescribe the number of directors constituting the quorum of any committee appointed by them.

PART V
—cont.
Quorum of
committees.

50. Section 95 of the Companies Clauses Consolidation Act 1845 shall be deemed to authorise the directors to appoint any one of their body as a committee for the purposes of passing transfers and sealing certificates of any shares or other securities of the Company and of executing any other minor powers exercisable by the directors.

Exercise of
minor powers
by one
director.

51. If any money is payable to a shareholder debenture stockholder or mortgagee being a minor the receipt of his guardian shall be a sufficient discharge to the Company.

Receipt in
case of minors.

52. Notwithstanding anything in section 13 of the Companies Clauses Consolidation Act 1845 or in any enactment from time to time relating to the Company the Company shall not be under any obligation to issue a new mortgage deed or a new certificate of any share capital or debenture stock or a new warrant in respect of interest or dividend in lieu of any mortgage deed certificate or warrant lost or destroyed or alleged to be lost or destroyed until they have received from the person to whom such new mortgage deed certificate or warrant is to be issued such indemnity as the directors may require against any and every claim or expense which may be made against the Company or which the Company may incur in respect of such lost or destroyed mortgage deed certificate or warrant or the mortgage share capital debenture stock dividend or interest represented thereby.

Indemnity
before issue of
substituted
certificates etc.

53. Section 98 of the Companies Clauses Consolidation Act 1845 shall in its application to the Company have effect as if the words "or of the next succeeding meeting" were inserted therein after the words "shall be signed by the chairman of such meeting".

Signing of
minutes etc.

54. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 where several persons are jointly entitled to and registered as holders of any share capital of the Company any one of those persons may vote at any meeting at which holders of share capital of the same class are entitled to vote either personally or by proxy in respect of the share capital as if he were solely entitled thereto but if more than one of the joint holders be present at any meeting personally or by proxy that one of the said persons so present whose name stands first on the register in respect of the share capital shall alone be

Joint holders.

PART V
—cont.

entitled to vote in respect thereof. Several executors or administrators of a deceased member of the Company in whose name any share capital stands shall for the purposes of this section be deemed joint holders thereof.

As to
remuneration
of secretary.

55. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may determine the remuneration of the secretary.

Company not
bound to
regard trusts.

56. The Company shall not be bound to see to the execution of any trust whether express implied or constructive to which any share capital or debenture stock of the Company may be subject and the provisions of section 20 of the Companies Clauses Consolidation Act 1845 shall mutatis mutandis extend and apply to any share capital or debenture stock of the Company as if such share capital or debenture stock were shares to which that section applies.

Auditors.

57.—(1) The Company shall annually appoint one or more persons or a firm of accountants to be the auditor or auditors of the Company :

Provided that no person or firm shall be qualified for appointment as auditor unless he is a member or in the case of a firm unless all the partners are members of one or more of the following bodies :—

The Institute of Chartered Accountants in England and Wales ;

The Society of Incorporated Accountants and Auditors ;

The Institute of Chartered Accountants of Scotland ;

The Association of Certified and Corporate Accountants ;

The Institute of Chartered Accountants in Ireland.

(2) It shall not be necessary for any auditor of the Company to hold any shares in the capital of the Company.

(3) No person not being a retiring auditor of the Company shall be eligible to be elected at any general meeting an auditor of the Company unless notice in writing be given to the secretary or left at the principal office of the Company not less than seven clear days before the date of the meeting that such a person will be proposed for election as auditor of the Company. The secretary shall on receipt of any such notice send a copy thereof to the retiring auditor or auditors and during the seven days and day of election keep a copy of the notice fixed in some conspicuous place in the said office.

(4) If any auditor of the Company die or resign the directors may appoint another auditor in his place and any auditor so appointed shall hold office until the next ordinary meeting.

58.—(1) Notwithstanding anything in any enactment for the time being relating to the Company any contract or agreement required to be in writing and not under seal may be signed on behalf of the Company by the secretary or other person appointed in that behalf by the directors.

PART V
—cont.
Authentication
of contracts
and notices.

(2) Any notice to be served by the Company shall be sufficiently authenticated by the signature of the secretary or other officer of the Company for the time being authorised by the directors or by the name of the officer being printed or stamped on the notice.

PART VI

GENERAL

59. The Minister may hold such inquiries as he may consider necessary in regard to the exercise of any powers or duties conferred upon him or the giving of any consent or approval under this Act and section 290 of the Local Government Act 1933 shall apply to any such inquiry as if it were an inquiry held in pursuance of subsection (1) of that section and as if the Company were a local authority.

Inquiries by
Minister.

60. Where the payment of more than one sum by any person is due under the provisions of any enactment from time to time relating to the Company any summons or warrant issued for the purposes of any one or more of such enactments in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Several sums in
one summons.

61.—(1) Save as otherwise expressly provided by any enactment from time to time relating to the Company all offences against any such enactment and all penalties or forfeitures imposed or recoverable thereunder or under any byelaw made thereunder or by virtue thereof may be prosecuted and recovered in a summary manner.

Recovery of
penalties etc.

(2) Any costs or expenses recoverable as aforesaid may be recovered summarily as civil debts where the amount recoverable does not exceed twenty pounds.

62. It shall not be lawful to exercise the powers of borrowing or raising capital conferred by this Act otherwise than in compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

Saving for
powers of
Treasury.

63. The provisions of the Milford Docks Acts 1874 to 1935 mentioned in the schedule to this Act are hereby repealed.

Repeal.

64. All the costs charges and expenses preliminary to and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Costs of Act.

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PROVISIONS OF THE MILFORD DOCKS ACTS 1874 TO 1935
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Section 30 (For protection of Victoria Bridge).

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Section 37 (Period for completion of works).

Section 74 (For protection of the lessee of the Milford Haven Dock and Railway Company).

The Milford Docks Act 1875—

Section 3 (Alterations in design of Company's works).

The Milford Docks (Extension of Time) Act 1880—

The whole Act.

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The Milford Docks Act 1884—

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Section 4 (Extension of time for completion of works).

The Milford Docks Act 1890—

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The Milford Docks Act 1894—
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The Milford Docks Act 1898—
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The Milford Docks Act 1901—
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The Milford Docks Act 1906—
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The Milford Docks Act 1911—
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The Milford Docks Act 1919—
Section 9 (Revival of powers).
Section 10 (Period for completion).
Section 11 (Parish in which pier to be situate).
Section 12 (Provisions of Act of 1890 to apply).
Section 15 (Confirmation of byelaws).

The Milford Docks Act 1930—
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The Milford Docks Act 1935—
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Table of Statutes referred to in this Act

Short title	Session and chapter
Companies Clauses Consolidation Act 1845 ...	8 & 9 Vict. c. 16.
Lands Clauses Consolidation Act 1845 ...	8 & 9 Vict. c. 18.
Harbours Docks and Piers Clauses Act 1847 ...	10 & 11 Vict. c. 27.
Companies Clauses Act 1863 ...	26 & 27 Vict. c. 118.
Milford Docks Act 1874 ...	37 & 38 Vict. c. lxxvii.
Merchant Shipping Act 1894 ...	57 & 58 Vict. c. 60.
Milford Docks Act 1919 ...	9 & 10 Geo. 5. c. lxxvi.
Local Government Act 1933 ...	23 & 24 Geo. 5. c. 51.
Limitation Act 1939 ...	2 & 3 Geo. 6. c. 21.
Supplies and Services (Transitional Powers) Act 1945 ...	9 & 10 Geo. 6. c. 10.
Borrowing (Control and Guarantees) Act 1946 ...	9 & 10 Geo. 6. c. 58.
Supplies and Services (Extended Purposes) Act 1947 ...	10 & 11 Geo. 6. c. 55.
Civil Aviation Act 1949 ...	12 & 13 Geo. 6. c. 67.

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